

MEMORANDUM OF UNDERSTANDING

BETWEEN

THE GOVERNMENT OF RWANDA

REPRESENTED BY THE MINISTRY OF HEALTH

AND

Medtronic LABS

MEMORANDUM OF UNDERSTANDING

PREAMBLE

1. Pursuant to the East African Customs Management Act, 2004, Fifth Schedule (S 114);
2. Pursuant to the Law N° 31/2009 of 26/10/2009 on Protection of Intellectual Property;
3. Pursuant to Law N° N°04/2012 of 17/02/2012 governing the organisation and the functioning of national non-governmental organizations;
4. Pursuant to Law N° 04/2013 of 08/02/2013 relating to access to information;
5. Pursuant to Law N° 57/2018 of 13/08/2018 on Immigration and Emigration in Rwanda;
6. Pursuant to Law No 027/2022 of 20/10/2022 establishing taxes on income as amended to date;
7. Pursuant to Law No 049/20 of 05/09/2023 Establishing the Value Added Tax.

I. PARTIES

This Memorandum of Understanding constitutes a non-binding agreement framework between

Medtronic LABS
P.O. Box 989
Kigali – Rwanda
Fix and Mobile Phone: 12345588
Address: KK56
Email: info@medtronic.org
Website: medtronic.org

And

MINISTRY OF HEALTH OF RWANDA

P.O. Box 84
Kigali - Rwanda
Email: info@moh.gov.rw
Website: www.moh.gov.rw
Hereinafter referred to as “MoH” or ‘’ Administration

II. OVERALL OBJECTIVE

The Ministry of Health and Medtronic LABS; both parties agree to establish a partnership/collaboration in Medical Health Insurance scheme

III. TERM AND VALIDITY

1. The Program shall be executed within a period of five (5) years, during which both parties shall assess the achievements attained under the program and jointly recommend the way forward.
2. This Memorandum of Understanding is valid for a period of one (1) year starting from the date of its approval and signature by both parties, the MoU may be renewed upon approval of both parties.

IV. PROJECT GOALS

The overall goal for this project is Medical Health Insurance scheme and specific objectives are:

1. Goal one
2. Goal two
3. Goal three

V. STRATEGIES AND RESPONSIBILITIES

The following strategies and responsibilities will be followed to fulfill the overall objective and both parties agree upon project goals and these:

i. Responsibilities of the Government of Rwanda, Ministry of Health (Administration)

The responsibilities of the Ministry of Health are as follows:

1. To provide supervision and inform Medtronic LABS of any concerns or changes in the National Health Policy where NON-COMMUNICABLE DISEASES AND MENTAL HEALTH PREVENTION AND CONTROL are concerned.
2. To support the dissemination of information regarding the program
3. To assign Partners/SWAp Coordination Desk to provide to Medtronic LABS with the necessary administrative support related to the program/project or activities.
4. In accordance with Rwandan laws, the Administration will facilitate the request for taxes exemption of applicable items to be used under this agreement.

ii. Responsibilities of Medtronic LABS

The responsibilities of Medtronic LABS are as follows:

- | | | |
|----|----------------|-----|
| 1. | Responsibility | one |
| 2. | Responsibility | Two |
3. Responsibility Three
- Medtronic LABS agrees to submit regular financial and activity reports on progress made, challenges and future projections to the Ministry of Health's Partners/SWAp Coordination and affiliated institutions informed about its projects, as well as reporting in HRTT.

VI. INTELLECTUAL PROPERTY OWNERSHIP

Both Parties shall be joint owners of any intellectual property rights in data or materials generated during the course of project activities. With regard to data collected in Rwanda, the MOH is free to further develop, publish, share or otherwise use such data or material, but Medtronic LABS may do so only with the prior consultations with the MOH and within the limits of the Rwanda law on Data Protection and Privacy. Both Parties agree to properly attribute authorship or contributions of the other in any publications that include any such data or material.

VII. GOVERNING LAW

The laws of Rwanda shall govern this MoU. Any dispute, misinterpretation or misunderstanding arising out of the implementation of any provisions of this Memorandum of Understanding shall be settled amicably. In case the parties fail to agree either party shall have the liberty to terminate this MoU.

All the signatories are committed to working within the requirements and policies of the Rwandan government and will take all measures to adhere to these constraints.

VIII. Integrality and Expiry of the MoU

This MoU forms an integral part of the requirements by the Rwanda Governance Board, the national organ in charge of registering Non-Governmental Organizations (NGOs).

This MoU does not constitute or replace the registration certificate for NGOs issued by the RGB, therefore it expires after a period of sixty (60) calendar days that start to count from the day of signature by the Ministry of Health, if Medtronic LABS does not register or renew its registration certificate as an NGO.

IX. TERMINATION NOTICE

This Memorandum of Understanding is effective from the date of signing by representatives of both parties. Notwithstanding the foregoing, either party may terminate this Agreement by giving (30) thirty day's written notice to that effect.

X. EFFECTIVE DATE

The parties agree to the terms of this Memorandum of Understanding hereto, such consent acknowledges this 15/07/2024.

THE PARTIES

On Behalf of the
Government of Rwanda

and

On Behalf of Medtronic LABS

Authorized signatory

Authorized signatory

Dr. Sabin NSANZIMANA
Minister of Health

William Clark
Chief Executive Officer